

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

COMPLAINT No: CC006000000012119

(Correction Order)

Mrs. Sadia Ishque Darvesh & Ms. Abeer Syed Complainants

Versus

M/s. Nirmal Lifestyle Limited

MahaRERA Registration No. P51800003188 --- Respondent

Coram: Hon'ble Dr. Vijay Satbir Singh, Member 1

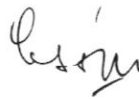
Adv. Jennifer Michael appeared for the complainants.

Mr. Rohit Chavan appeared for the respondent.

Order

(16th August, 2018)

1. The complainants have filed this complaint seeking directions from this Authority to the respondent to refund the entire amount paid by them with interest and compensation for the delayed possession in respect of booking of a flat bearing No. 607 in the building known as "Turquoise", bearing MahaRERA registration No. P51800003188 at Mulund (West), Mumbai.
2. Both the parties have settled the matter amicably and filed consent terms on record of MahaRERA. Accordingly, final order was passed by this Authority on 14th May, 2018 and the complaint was disposed of.



3. Now the complainants have filed an application for review/correction and requested to delete the word "withdrawn" wherever mentioned in the said order and also incorporate the sentence "the complaint stands disposed of in view of the consent terms filed by both the parties".
4. The complainants have argued that they are seeking review and corrections in the said order under the provision of section 39 of the RERA Act, 2016. Since it is a clerical error and justified request by the complainant, their application is entertained for hearing again. The respondent has also given their consent to delete the word "withdrawn" from the order dated 14th May, 2018 passed by MahaRERA.
5. Accordingly, this Authority has examined the arguments of both the parties as well as the consent terms filed on record of MahaRERA. It reveals that in the consent terms filed on record of MahaRERA, both the parties have agreed to dispose of the complaint in view of their settlement arrived at. It The word "withdrawn" got mentioned inadvertently in para 2(d) and 4 of the said order.
6. In the light of the above, this Authority hereby directs that the word "withdrawn" be deleted in para 2(d) and 4 of the order dated 14th May, 2018.
7. With these directions, the application stands disposed of finally.


(Dr. Vijay Saffbir Singh)
Member-1/MahaRERA

Non-Execution Application in
Complaint No. CC006000000012119

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY MUMBAI**

Non-Execution Application

In

Complaint No. CC006000000012119

Sadia Ishaque Daruesh & Anr.

.... Complainants

Versus

Nirmal Lifestyle Ltd.

.... Respondent

MahaRERA Project Registration No. P51800003188

Coram: Shri. Mahesh Pathak, Hon'ble Member - I/MahaRERA

Ld. Adv. Raman Mishra appeared for the complainants.

Ld. Adv. Tushar Kadam appeared for the respondent.

ORDER

(Friday, 16th September 2022)

(Through Video Conferencing)

1. The complainants above named have filed this application for non-execution of the final order dated 14-05-2018 read along with corrected order dated 16-08-2018 passed by MahaRERA in the aforesaid complaint filed with respect to the project registered by the respondent with MahaRERA. By the said order, this complaint was disposed of as withdrawn as the parties have filed detailed consent terms on record of MahaRERA.



Non-Execution Application in
Complaint No. CC006000000012119

2. This application was heard finally on 29-08-2022 as per the Standard Operating Procedure dated 12-06-2020 issued by MahaRERA for hearing of complaints through Video Conferencing. Both the parties have been issued prior intimation of this hearing and they were also informed to file their written submissions if any. Accordingly, both the parties appeared for the hearing and made their respective submissions. MahaRERA heard the submissions of the parties and also perused the available record.
3. During the course of hearing, the complainants have stated that the respondent promoter has complied with the consent terms partially and sought direction from MahaRERA to issue recovery warrant in this matter.
4. The respondent on the other hand has admitted the said facts and stated that out of total amount of Rs. 1,50,00,000/-, it has paid an amount of Rs. 27,00,000/- to the complainants till date and it is ready and willing to settle the matter amicably with them.
5. The complainants resisted the said claim agitated by the respondent about the re-settlement stating that now the complainants are not interested in settling the matter with the respondent as the complainants are harassed by the respondent even before the proceeding initiated under section 138 of the Negotiable Instrument Act.
6. The MahaRERA has examined the submissions made by both the parties and also perused the available record. By filing this application,



Non-Execution Application in
Complaint No. CC006000000012119

the complainant is seeking non-execution of orders passed by MahaRERA. However, the record shows that no final order on merits has been passed by the MahaRERA in the aforesaid complaint and the aforesaid complaint was disposed of in view of the consent terms signed by both the parties.

7. During the course of hearing, the respondent has stated that it has already paid an amount of Rs. 27,00,000/- to the complainants and for remaining payment it has shown its willingness to settle the matter amicably, which the complainants have refused to accept. The respondent has not submitted any justified reasons for non-compliance of the consent terms filed on record of MahaRERA.
8. In view of these facts, and in compliance of principles of natural justice, since the partial amount has been received by the complainants, the following order would meet the ends of justice in this case:
 - a. The respondent is directed to refund the balance amount to the complainants within a period of 3 months from the date of this order.
 - b. Failing which it shall be liable to pay penalty of Rs. 5,000/- per day for every day of default till actual compliance of the said order as provided under section 63 of the RERA.
 - c. The said penalty amount gets doubled per day after every month.
 - d. The MahaRERA further directs that for recovery of the refund / penalty amount levied by the MahaRERA, this non-execution application be referred to Secretary/MahaRERA for issuance of warrant under section 40 (1) of the RERA read along with Rule 3 of



**Non-Execution Application in
Complaint No. CC006000000012119**

Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017 for recovery of interest amount from the respondent.

9. With these directions, the non-execution application stands disposed of.


(Mahesh Pathak)

Member - 1/MahaRERA

